

CLIC Case 0005

Country/Court: Canada, Supreme Court

Decision number/date: 2005 SCC 40, 2005-06-28

Crime / Issue: Crimes Against Humanity, Incitement to Genocide

Abstract prepared by: Philipp Gartner

The respondent faced deportation proceedings in Canada on the grounds of the allegation that he committed incitement to genocide, counseling murder, incitement to hatred and a crime against humanity. It was alleged that he delivered a public speech to a political rally in Rwanda, thereby utilizing violent language to encourage his listeners to exterminate the Tutsi population and political opponents, and that the respondent had the specific intent to destroy the Tutsi ethnic group as such. Consequently, an immigration adjudicator and the Immigration Appeal Division ("IAD") found that there were reasonable grounds to believe that these allegations were true and issued a deportation order.

Following a reversal of the deportation order by the Federal Court of Appeal, the Minister of Citizenship and Immigration appealed to the Supreme Court of Canada ("the Court"), which addressed three primary points of law. First, the Court examined whether the appellate court exceeded its scope of judicial review over the tribunal's findings of fact. Second, it considered whether the speech satisfied the legal elements of incitement to genocide, murder, and hatred under domestic law. Lastly, it evaluated whether the actions constituted a crime against humanity under international law.

Regarding the first point, the Court examined the standards governing judicial review of administrative decisions. It held that at the secondary level of appellate review, a court must apply a reasonableness standard to the tribunal's findings of fact and owe deference to its evaluation of the evidence. The Court found that the appellate court erred by engaging in a broad-ranging, *de novo* reassessment of the text instead of focusing on whether the tribunal's conclusions were reasonable. Conversely, on questions of law regarding the definition of criminal offenses, the Court applied a correctness standard, ruling that no deference is owed to administrative bodies in determining the statutory elements of a crime.

Regarding the second point, the Court analyzed the elements of incitement to genocide, noting that international law serves as a crucial aid for interpreting domestic provisions. It held that the criminal act requires a direct and public incitement, meaning the words used must be clear enough to be immediately understood by the target audience within their specific social and historical context. Furthermore, the Court held that the specific intent (*dolus specialis*) to

destroy a protected group in whole or in part can be validly inferred from the surrounding circumstances, such as the speaker's awareness of ongoing ethnic violence. It concluded that a causal link to actual subsequent acts of violence was unnecessary, finding the allegations of incitement to genocide, murder, and hatred to be fully substantiated.

Lastly, the Court evaluated the allegation of crimes against which requires an underlying proscribed act committed as part of a widespread or systematic attack directed against a civilian population. It observed that for an allegation of counseling murder to constitute a crime against humanity under international law, the resulting murders must have actually been committed, which was not proven on the evidence. However, the Court held that the speech independently satisfied the elements of the alternative underlying act of persecution, which it defined as a gross and severe denial of fundamental human rights on discriminatory grounds. It concluded that extreme hate speech advocating physical extermination meets this threshold under customary international law, thereby confirming that the respondent had committed a crime against humanity and restoring the deportation order.